



SPONSOR: Sen. Lawson & Rep. Carson
Sens. Brown, Buckson, Cruce, Hansen, Hocker, Hoffner,
Huxtable, Lockman, Mantzavinos, Paradee, Pettyjohn,
Pinkney, Poore, Richardson, Seigfried, Sokola, Sturgeon,
Townsend, Walsh, Wilson; Reps. Chukwuocha, Cooke,
Ross Levin, D. Short, Shupe, Yearick

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 38

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO RETIRED LAW-ENFORCEMENT ANIMALS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subchapter VII, Chapter 30F, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating Delaware Code provisions accordingly:

Subchapter VII. Retired Law-Enforcement ~~Canine~~ Animals Act

§ 3095F. Definitions.

For purposes of this subchapter:

(1) “Department” means any of the following:

a. Department of Correction.

b. Department of Safety and Homeland Security for the State Police and Capitol Police.

c. Department of Natural Resources and Environmental Control.

d. State Fire Prevention Commission for the Office of the State Fire Marshal.

e. Any police department of a political subdivision of the State.

(2) “Owner” means the person who, under written agreement with the Department that the retired law-enforcement canine or retired law-enforcement horse assisted, has taken possession of that canine or horse.

(3) “Retired law-enforcement canine” means a canine previously trained for and used by a Department to assist with the performance of law-enforcement duties.

(4) “Retired law-enforcement horse” means a horse previously trained for and used by a Department, as defined under paragraph (1)a., b., c., or d. of this section, to assist with the performance of law-enforcement duties.

(5) “Veterinary care” means the medical care provided by a “veterinarian,” as defined in § 3302 of Title 24. “Veterinary care” includes the costs of prescription medication, surgery to remedy substantial risk to life or health, and cremation. “Veterinary care” does not include elective surgery.

§ 3096F. Veterinary care for retired law-enforcement canines.

(a) For purposes of this section:

(1) "Department" means any of the following:

a. ~~Department of Correction.~~

b. ~~Department of Safety and Homeland Security for the State Police and Capitol Police.~~

c. ~~Department of Natural Resources and Environmental Control.~~

d. ~~State Fire Prevention Commission for the Office of the State Fire Marshal.~~

e. Any police department of a political subdivision of the State.

(2) "Owner" means the person who, under written agreement with the Department that the retired law-enforcement canine assisted, has taken possession of the retired law-enforcement canine.

(3) "Retired law-enforcement canine" means a canine previously trained for and used by a Department to assist with the performance of law-enforcement duties.

(4) "Veterinary care" means the medical care provided by a "veterinarian," as defined in § 3302 of Title 24. "Veterinary care" includes the costs of prescription medication, surgery to remedy substantial risk to life or health, and cremation. "Veterinary care" does not include elective surgery.

~~(b)(1)~~ (a)(1) The Department, as defined in paragraph (a)(1)a., b., c., or d. of this section, that § 3095F(1)a., b., c., or d. of this title, that the retired law-enforcement canine assisted shall reimburse an owner up to \$1,500 annually for veterinary care expenses paid by the owner for the care of that retired law-enforcement canine.

(2) The Department of Safety and Homeland Security Security, for a law-enforcement ~~canines~~ canine retired from ~~Departments as defined in paragraph (a)(1)e. of this section,~~ a Department, as defined in § 3095F(1)e. of this title, shall reimburse an owner up to \$1,500 annually for veterinary care expenses paid by the owner for the care of ~~the~~ that retired law-enforcement canine.

~~(c)(1)~~ (b)(1) The Department, as defined in paragraph (a)(1)a., b., c., or d. of this section, that § 3095F(1)a., b., c., or d. of this title, that the retired law-enforcement canine assisted shall require that the owner provide documentation of the veterinary care expenses.

(2) The Department of Safety and Homeland Security shall require that the owner provide documentation of the veterinary care expenses for the retired law-enforcement canine of ~~a Department as defined in paragraph (a)(1)e. of this section.~~ that assisted a Department, as defined in § 3095F(1)e. of this title.

~~(d)~~ (c) The Department of Correction, the Department of Safety and Homeland Security, the Department of Natural Resources and Environmental Control, and the State Fire Prevention Commission shall each promulgate regulations to establish a reimbursement process under this section.

52 § 3097F. Veterinary care and farrier services for retired law-enforcement horses.

53 (a) The Department, as defined in § 3095F(1)a., b., c., or d. of this title, that a retired law-enforcement horse
54 assisted shall reimburse an owner up to \$3,000 annually for veterinary care expenses and farrier services paid by the owner
55 for the care of that retired law-enforcement horse.

56 (b) The Department, as defined in § 3095F(1)a., b., c., or d. of this title, that the retired law-enforcement horse
57 assisted shall require that the owner provide documentation of the veterinary care expenses and farrier services for the care
58 of that retired law-enforcement horse.

59 (c) If this section is applicable to a Department, then that Department shall promulgate regulations to establish a
60 reimbursement process under this section.

61 Section 2. This Act is effective immediately and shall be implemented 6 months after enactment. This Act does
62 not apply to law-enforcement horses that retire before the implementation date of this Act.

SYNOPSIS

This Act provides financial support to owners who adopt a horse that retired from serving with the Department of Correction, State or Capitol police, the Department of Natural Resources and Environmental Control, or the Office of the State Fire Marshal. The owners of these retired-law enforcement horses may be reimbursed up to \$3,000 annually for veterinary care expenses and farrier services paid by the owner for the care of the retired law-enforcement horse. The Department that the retired law-enforcement horse assisted shall issue veterinary care and farrier services reimbursements and promulgate regulations to create a reimbursement process for retired law-enforcement horses.

This Act also makes structural changes to incorporate the support for retired law-enforcement animals into a single subchapter. This Act changes subchapter VII of Title 16 from the Retired Law-Enforcement Canine Act into the Retired Law-Enforcement Animals Act. This Act moves all the definitions into their own section, and adds and modifies definitions, as needed, to account for the addition of horses.

This Act is effective immediately and shall be implemented 6 months after enactment. This Act does not apply to law-enforcement horses that retire before the implementation date of this Act.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Lawson